

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1397

By: Provenzano

AS INTRODUCED

An Act relating to telemedicine for mental health;
amending 25 O.S. 2021, Section 2004, which relates to
consent for medical treatment of minors, exceptions,
and penalties for violations; adding mental health to
telemedicine; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 25 O.S. 2021, Section 2004, is
amended to read as follows:

Section 2004. A. Except as otherwise provided by law, no
person, corporation, association, organization, state-supported
institution, or individual employed by any of these entities may
procure, solicit to perform, arrange for the performance of, perform
surgical procedures, or perform a physical examination upon a minor
or prescribe any prescription drugs to a minor without first
obtaining a written consent of a parent or legal guardian of the
minor. Provided, however, that if written consent is provided to a
school district for assessment or treatment, such consent shall be
effective for the school year for which it is granted and shall be

1 renewed each subsequent school year. If an assessment or treatment
2 is performed through telemedicine, including but not limited to
3 telemedicine for mental health, at a school site and if consent has
4 been provided by the parent and is currently effective, the health
5 professional shall not be required to verify that the parent is at
6 the site.

7 B. Except as otherwise provided by law, no hospital as defined
8 in Section 1-701 of Title 63 of the Oklahoma Statutes may permit
9 surgical procedures to be performed upon a minor in its facilities
10 without first having received a written consent from a parent or
11 legal guardian of the minor.

12 C. The provisions of this section shall not apply when it has
13 been determined by a physician that an emergency exists and that it
14 is necessary to perform such surgical procedures for the treatment
15 of an injury, illness or drug abuse, or to save the life of the
16 patient, or when such parent or other adult authorized by law to
17 consent on behalf of a minor cannot be located or contacted after a
18 reasonably diligent effort.

19 D. The provisions of this section shall not apply to an
20 abortion, which shall be governed by the provisions of Sections 1-
21 740 through 1-740.6 and Sections 1-744 through 1-744.6 of Title 63
22 of the Oklahoma Statutes or any successor statute.

23 E. A person who violates a provision of this section is guilty
24 of a misdemeanor, punishable by a fine of not more than One Thousand

1 Dollars (\$1,000.00) or imprisonment of not more than one (1) year in
2 the county jail, or by both such fine and imprisonment.

3 SECTION 2. This act shall become effective November 1, 2025.
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